

*****Please note: this calendar will be heard in Department 53*****

Tentative Rulings

August 4, 2025

2:30 p.m.

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail as soon as possible after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at CourtCall.com or by calling 1-888-882-6878 (See CourtCall link under "General Information" on the Court's website).

CONSERVATORSHIPS

CONSERVATORSHIP OF SANDRA JENKINS

Case Number: CVPG12-0027370

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for further proceedings on the Final Periodic Report of Conservator, Petition for Fees, Distribution of Estate Remainder, and Termination of Conservatorship. The Court notes the Public Guardian failed to file and timely serve a Notice of Hearing for today's date, as ordered June 23, 2025. The matter was previously continued to allow the Public Guardian to submit additional information related to Probate Code § 2628 and reasons for distribution of all remaining assets to the Public Administrator. Based on the Declaration filed July 7, 2025, the Final Accounting is **WAIVED**. No information was provided as to why all assets should be distributed to the Public Administrator. The Conservatee is survived by two children; thus, it would be appropriate for the remainder of the estate to be distributed to them. The Declaration indicates a letter was sent to the Conservatee's heirs regarding the filing of a small estate affidavit on July 2, 2025. A small estate affidavit has not been submitted. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition and status of the filing of a small estate affidavit. The Public Guardian is **ORDERED** to file and timely serve a new Notice of Hearing for the continued date. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF LAUREN LONGWELL

CASE NUMBER: CVPG11-0026992

This matter is on calendar for Biennial Review. The Court has not yet received the Court Investigator's report. The Court Investigator has submitted a request for continuance to allow additional time to locate and contact the Conservators. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44.** No appearance is necessary on today's calendar.

CONSERVATORSHIP OF GABRIEL LOOS

Case Number: 25PC-0032828

This matter is on calendar for review after transfer in from Placer County. The Court Investigator's Report filed June 24, 2025, has been reviewed and is accepted by the Court. This matter is set for Annual Review on **Monday, June 22, 2026, at 2:30 p.m. in Department 44.** No appearance is necessary on today's calendar.

CONSERVATORSHIP OF ELAINE THOMPSON

Case Number: CVPG98-0021576

This matter is on calendar for further proceedings regarding appointment of a Successor Conservator. A Declaration has been filed indicating additional time is needed before a Petition can be submitted. The Court notes the Conservator, Judy Thompson, passed away in 2022. A limited conservatorship terminates by operation of law upon the death of the limited conservator. Probate Code § 1860.5(a)(1). A Successor Conservator has yet to be appointed, meaning the Conservatee has been without a Conservator for at least three years. The Court **ORDERS** the proposed Successor Conservator to file a Declaration regarding Elaine Thompson's condition including information about 1) who is currently acting as caretaker; 2) residence information; 3) medical appointments; 4) current services she is receiving; 5) how she is doing socially, emotionally, and physically, and 6) reasons why a conservatorship is still needed. The matter is continued to **Monday, September 8, 2025, at 2:30 p.m. in Department 44** for further proceedings regarding appointment of a Successor Conservator and Status of Conservatee. If the Declaration is not submitted prior to the next hearing date, the Court intends to conclude the conservatorship proceedings and close the file. No appearance is necessary on today's calendar.

CONSERVATORSHIP OF AXEL VOSSEN

Case Number: 22PC-0031599

This matter is on calendar for further proceedings regarding confirmation of filing of the Second Periodic Account and Report of Conservator. No account has been filed. No Status Report has been filed, as ordered May 12, 2025, and June 23, 2025. The matter is continued to **Monday, October 6, 2025, at 2:30 p.m. in Department 44** for further proceedings regarding confirmation of filing of the Second Periodic Account and Report of Conservator.

The Court will issue an Order to Show Cause to the Conservator, Rexanne Lynn Clark, and counsel as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file the Second Periodic Account and Report of Conservator and failure to file a Status Report as ordered May 12, 2025, and June 23, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SORAYA WILCOX

Case Number: 24PC-0032666

This matter is on calendar to confirm filing of the Conservatorship Care Plan Part 2. The Conservatorship Care Plan Part 2 (Form GC-356) has not been submitted. The Court notes at the last hearing a copy of the minute order was directed to be mailed to the Conservators notifying them of the issue regarding the care plan. Due to clerical error, a copy of the minute order was not sent. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for further proceedings regarding confirmation of filing the Conservatorship Care Plan Part 2. The Court again directs the clerk to send a copy of the minute order from today's hearing, as well as the hearing from June 23, 2025, to the Conservators. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DOLORES WINDUST

Case Number: 24PC-0032549

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for further proceedings on an Amended Petition for Instruction to Assign Mobile Home Over to Co-Owners. The Court previously found the matter properly noticed and no objections have been raised. Information in compliance with Probate Code §2540(b) has now been submitted indicating the Conservatee is in agreement with the proposed assignment. The Petition is **GRANTED**. A proposed order has been lodged and will be executed by the Court. The Court notes the future date of October 6, 2025, for Annual Review. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF MARY AULD

Case Number: 23PB-0032084

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed June 23, 2025, is not accepted by the Court. Item 1 requires a monetary amount appraised by the representative; "see attachment" is insufficient. Additionally, the attached "Probate Inventory" contains items of personal property with estimated values. The

Personal Representative is only allowed to appraise property listed in Probate Code § 8901; all other property must be appraised by the probate referee. Probate Code § 8902. Lastly, the Personal Representative failed to properly complete the attachments, which requires compliance with Probate Code Section 8850(c), by identifying whether the assets were community or separate property.

This matter is continued to **Monday, September 8, 2025, at 2:30 p.m. in Department 44** for further proceedings to confirm filing of the Inventory and Appraisal. If the document cannot be filed prior to that date, then the Personal Representative is **ORDERED** to file and serve a Status Report no later than five court days prior to the hearing date to advise the Court what must be accomplished before the Inventory and Appraisal can be filed. A failure to file either the Inventory and Appraisal or Status Report will result in the issuance of an Order to Show Cause Re: Monetary Sanctions for failure to comply with the Court's order. The Court confirms the future date of September 8, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LELA BIDWELL

Case Number: 24PB-0032761

This matter is on calendar for further proceedings on a Petition for Probate of Will. Petitioner has again failed to file anything to cure the defects raised on May 5, 2025. In light of Petitioner's failure to move forward on the Petition, the Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATE OF ROY BISHOP

Case Number: 24PB-0032405

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, January 5, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Petition for Final Distribution is noticed for a different date, the Court will vacate the January 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLYN BROWN

Case Number: 25PB-0032926

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The Court previously found the matter properly noticed. Proof of proper publication has now been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, December 8, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 3, 2026, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF OLETA DOBSON

Case Number: 24PB-0032352

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for hearing on the Amended First and Final Account and Report and Petition for Final Distribution. The matter has not been properly noticed. There is no proof of service for the heir, Dustin Hale. Additionally, Petitioner has again failed to comply with CRC 7.401 as to the creditor's claim by the Public Guardian filed July 17, 2024. There are two DE-174s attached to the Petition related to the creditor's claim by the Department of Health Care Services, which appears to have been in error. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An Allowance or Rejection of Creditor's Claim must be submitted regarding the Public Guardian's creditor's claim. Petitioner is **ORDERED** to file and timely serve a new Notice of Hearing on all individuals entitled to notice for the continued date. **No appearance is necessary on today's calendar.**

ESTATE OF DEBRA DOMBERG

Case Number: 22PB-0031706

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The Court notes an Inventory and Appraisal is required to be filed for the newly discovered assets. The matter is continued to **Monday, December 8, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections

12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Petition for Final Distribution is noticed for a different date, the Court will vacate the December 8, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF BRENT ERVIN

Case Number: 24PB-0032561

This matter is on calendar for hearing on the Petition for Final Distribution and Report of Administrator on Waiver of Accounting. The matter has been properly noticed, with proof of service on file. No objections have been raised. The calculation for statutory compensation is incorrect. Statutory compensation payable to counsel is \$11,185.24, not \$11,188.24 (\$209,261.81 x 2% = \$4,185.24; \$4000 + \$3000 + \$4,185.24 = \$11,185.24). The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court, with the modification to the statutory compensation. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF RAYMOND FANN

Case Number: 24PB-0032299

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for hearing on an Amended First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception of the proposed distribution. The Petition indicates the decedent had a predeceased child (Raymond Fann II) and a post-deceased child (Larae Williamson). Under the laws of intestacy, the decedent's estate passes in equal shares to Raymond Fann II's heir (Timothy Fann) and the estate of Larae Williamson. The Court notes nothing has been submitted addressing any potential estate proceedings related to Larae Williamson. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An Amended Petition is required to correct the proposed distribution. Petitioner is **ORDERED** to file and timely serve a Notice of Hearing, along with a copy of the Petition, on all parties entitled to notice for the continued date. The Court notes, if Laura Yazzie-Fanning and LaNel Yazzie are the sole heirs of the estate of Larae Williamson, they can submit an affidavit for small estate to allow them to collect the distribution to the estate. **No appearance is necessary on today's calendar.**

ESTATE OF KAREN HARVILLE

Case Number: 24PB-0032365

This matter is on calendar for hearing on an Amended First and Final Report on Waiver of Account and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised.

As to the issue of statutory compensation, under the relief requested the Petition specifically states in direct reference to Probate Code § 10005: “If Petitioner is responsible for the loss on the reappraisal of the property...” The Court clarifies that Probate Code § 10005 specifically refers to the responsibilities and liabilities of the personal representative in the administration of the estate. The statute is a limitation on the representative's personal liability when estate property is sold, in accordance with the law, below its appraisal value. This has no effect on the calculation of statutory compensation. The Court is not making a finding as to the personal representative's personal liability to the estate for the loss on sales. Additionally, whether or not the Court takes into consideration the Reappraisal for Sale, the statutory compensation remains the same. The calculation for statutory compensation is clearly outlined in CRC 7.705 (Inventory and Appraisal + Receipts + Gains on Sale – Losses on Sale = Fee Basis). The Court notes the Petition incorrectly states the fee basis includes the subtraction of gains on sale. Using the original Inventory and Appraisal values, statutory compensation is still \$12,806.41.

The Petition is **GRANTED**, with statutory compensation awarded to the Personal Representative and Counsel in the sum of \$12,806.41. A proposed order has been lodged and will be executed by the Court. The order shall be modified, removing any statements regarding the Personal Representative's personal liability for the loss on sales. The previously set hearing of **Monday, August 18, 2025 at 2:30 p.m.** is VACATED. This matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLINE HYATT

Case Number: 24PB-0032304

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, September 29, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 29, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF BARBARA KLASSON

Case Number: 24PB-0032592

This matter is on calendar for confirmation of an acknowledged statement by the Trustee. An acknowledged statement has been submitted to the Court, thus the First and Final Report and Petition for Final Distribution on Waiver of Account has been granted. The proposed order was executed by the Court and entered July 15, 2025. The hearing currently set for October 6, 2025, for Status of Administration is hereby **VACATED**. This matter is set for **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF TIMOTHY LANDIS

Case Number: 24PB-0032492

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed. However, Notice of Hearing was not timely served. The matter is continued to **Monday, September 8, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution noticed for a different date, the Court will vacate the September 8, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID MARTIN, SR.

Case Number: 23PB-0031921

This matter is on calendar today to confirm the filing of Receipts and Petition for Final Discharge. A Receipt has been filed for Elizabeth Olivas. The Court notes a Petition for Final Discharge was received July 15, 2025; however, it could not be granted because there is no Receipt from Lauren Krzewinski. The matter is continued to **Monday, September 8, 2025, at 2:30 p.m. in Department 44** to confirm filing of the Petition for Final Discharge. If a Petition for Final Discharge cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the Petition for Final Discharge can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF ELIZABETH MAZZINI

Case Number: 24PB-0032510

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final

Distribution is noticed for a different date, the Court will vacate the September 22, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF STEPHEN MORRILL

Case Number: 24PB-0032326

This matter is on calendar for hearing on an Amended First and Final Report, Waiver of Account, and Petition for Final Distribution. The Supplemental Inventory and Appraisal filed July 17, 2025, is accepted by the Court. The Consent and Waiver of Notice and Amended Petition both fail to indicate if the predeceased spouse's daughter pre- or post-deceased the decedent, which affects whether Eric and Meghan are heirs to the present estate. If Eric and Meghan's mother post-deceased the decedent, additional information is required regarding the condition of her estate. Due to the lack of information, the Court cannot determine if proper notice and waiver of an accounting have been provided. Additionally, a creditor's claim by U.S. Bank was filed July 1, 2024. The Petition indicates the claim was accepted and paid at a negotiated rate; however, mandatory form DE-174 Allowance or Rejection of Creditor's Claim has not been submitted.

The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner must submit 1) a supplemental declaration to address the deceased issue and 2) mandatory form DE-174 regarding the creditor's claim. Petitioner is **ORDERED** to timely serve and file Notice of Hearing on all parties entitled to notice for the continued date. **No appearance is necessary on today's calendar.**

ESTATE OF SONDRA MUMAW

Case Number: 23PB-0032102

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. Receipts have still not been filed. A Petition for Final Discharge has still not been filed. The matter is continued to **Monday, October 6, 2025, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge.

The Court will issue an Order to Show Cause to the Personal Representative as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file Receipts and a Petition for Final Discharge and failure to file a Status Report, as ordered June 30, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF ROY PETERS, III

Case Number: 24PB-0032546

This matter is on calendar for further proceedings on a Petition for Order Terminating Estate Proceedings and for Final Discharge of Special Administrator and Practice Administrator. The matter has been continued several times to allow Petitioner to file an Inventory and Appraisal indicating there are no assets to administer. An Inventory and Appraisal has still not been filed. Upon filing of the Inventory and Appraisal showing no assets, the Petition can be granted. **An appearance is necessary on today's calendar to discuss status of filing the Inventory and Appraisal.**

ESTATE OF MARSHA QUIGLEY

Case Number: 24PB-0032554

This matter is on calendar for hearing on the First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF BENNETT RIFFEL

Case Number: CVPB19-0030280

This matter is on calendar for further proceedings to confirm filing of a Petition for Final Discharge. A Petition for Final Discharge has still not been filed. A Status Report has not been filed, as ordered April 21, 2025, and June 23, 2025. The matter is continued to **Monday, October 6, 2025, at 2:30 p.m. in Department 44** for further proceedings to confirm filing of a Petition for Final Discharge.

The Court will issue an Order to Show Cause to the Personal Representatives and counsel as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file a Petition for Final Discharge and failure to file a Status Report, as ordered April 21, 2025, and June 23, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44**. The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF MELVIN RIFFEL

Case Number: CVPB19-0030282

This matter is on calendar for further proceedings to confirm filing of a Petition for Final Discharge. A Petition for Final Discharge has still not been filed. A Status Report has not been filed, as ordered April 21, 2025, and June 23, 2025. The matter is continued to **Monday, October 6, 2025, at 2:30 p.m. in Department 44** for further proceedings to confirm filing of a Petition for Final Discharge.

The Court will issue an Order to Show Cause to the Personal Representative and counsel as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file a Petition for Final Discharge and failure to file a Status Report, as ordered April 21, 2025, and June 23, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44**. The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF CHRISTY RUDKIN

Case Number: 24PB-0032702

This matter is on calendar for hearing on the Petition for Allowance of Statutory Compensation and for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF EDWARD SEIGMUND

Case Number: 23PB-0032232

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has still not been filed. A Status Report has not been filed, as ordered December 9, 2024, March 17, 2025, and June 9, 2025. The Court notes Attorney McKenna has appeared on behalf of objector, Wayne Seigmund, at the last two hearings to state that there are no assets. However, an objection has not been filed. The matter is continued to **Monday, October 6, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. If the Inventory and Appraisal is not filed prior to the next hearing, the Court will assume there are no assets to be distributed, discharge the Personal Representative, and close the file.

The Court will issue an Order to Show Cause to the Personal Representative as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to timely file the Inventory and Appraisal and failure to file a Status Report, as ordered December 9, 2024, March 17, 2025, and June 9, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44**. The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF DENNIS STINE

Case Number: 24PB-0032646

This matter is on calendar for confirmation of filing of the Final Inventory and Appraisal. The Second and Final Inventory and Appraisal filed June 16, 2025, is accepted by the Court despite the failure to characterize the assets as either separate or community property pursuant to Probate Code §8850(c). The decedent was not married; therefore, the defect can be overlooked. The Court notes the future court date of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES WALLERS

Case Number: 23PB-0032168

This matter is on calendar for confirmation of filing of the Inventory and Appraisal and for Status of Administration. The Inventory and Appraisal has still not been filed; thus, no Petition for Final Distribution has been filed. No Status Report has been filed, as ordered April 7, 2025. The matter is continued to **October 6, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal and for Status of Administration.

The Court will issue an Order to Show Cause to the Personal Representative and counsel as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to timely file the Inventory and Appraisal, failure to timely close the estate administration, and failure to file a Status Report, as ordered April 7, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF CLIFFORD WARD

Case Number: 24PB-0032745

This matter is on calendar for further proceedings on the second amended Petition for Probate of Will. The matter was previously continued to allow Petitioner cure defects in the Petition and give proper notice of the proceedings. A third amended Petition has been filed and noticed for August 11, 2025. That date is confirmed. **No appearance is necessary on today's calendar.**

ESTATE OF CHERYLE WILSON

Case Number: 23PB-0032010

This matter is on calendar for Status of Administration. A Petition for Final Distribution has still not been filed. A Status Report has been filed seeking to continue this hearing for six months to allow for the sale of real property. The matter is continued to **Monday, January 5, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF RICHARD WOULFE

Case Number: 24PB-0032671

This matter is on calendar for hearing on the First and Final Account Report of Administrator and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that nothing has been filed indicating compliance with Probate Code § 9202(b) and (c). The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is required to file a supplemental declaration addressing Probate Code § 9202(b) and (c). **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: BETTY RUTHERFORD REVOCABLE TRUST

Case Number: 25PB-0032907

This matter is on calendar for further proceedings on the Petition for Confirmation of Assets. The Court previously continued the matter to allow Petitioner to submit additional information to show the Trustor had a present intent to hold the subject property in the name of the Trust. Nothing has been submitted. The basis for the Petition is that, because the Trustor executed a pour-over will, she had a present intent to hold the subject property in the name of the Trust. This is insufficient. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: DAVID P. FRASE TRUST OF 2000

Case Number: 25PB-0032977

This matter is on calendar for hearing on a Petition to Amend Irrevocable Trust to Appoint Successor Trustee. The matter has not been properly noticed. There is no proof of service of the Notice of Hearing and Petition on beneficiaries Diane Seyranian Frase, Robert Seyranian, or the Trustee of the David P. Frase Land Trust. The Court notes five (5) of the beneficiaries have consented to Petitioner's appointment as Successor Trustee.

Section 6.02 of the Trust provides the method for appointing a Successor Trustee. Pursuant to the Trust, any Trustee can appoint a Successor by delivering a signed writing to the person designated as Successor. The Petition indicates the current Trustee, John Grimes, has resigned. While the Petition attaches an agreement for Mr. Grimes to take over as Successor Trustee, any evidence of his resignation is notably absent. Additionally, the Petition fails to address whether Mr. Grimes has neglected to appoint a Successor. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is **ORDERED** to serve and file a new Notice of Hearing on the parties identified for the continued hearing date. An Amended Petition or supplemental declaration is required providing information on the issues raised above if Petitioner wishes to move forward with his request. **Notice is preserved. No appearance is necessary on today's calendar.**

IN RE: MARY JANE DAL MOLIN REVOCABLE TRUST

Case Number: 24PB-0032338

This matter is on calendar for further proceedings regarding status of trust property and status of accounting. Nothing has been filed to provide the Court with an update. **An appearance is necessary on today's calendar to discuss the status.**

IN RE: MAZZINI FAMILY TRUST, DATED FEBRUARY 27, 2003

Case Number: 24PB-0032717

This matter is on calendar for further proceedings on a Petition to Recover Trust Property. The Court previously continued the matter at request of counsel to resolve issues regarding service. **An appearance is necessary on today's calendar for status of service, further proceedings, and setting a contested hearing.**

IN RE THE SHADWELL 1997 REVOCABLE TRUST

Case Number: CVPB11-0026890

This matter is on calendar for hearing on an Amended Petition for Approval of Thirteenth and Final Account and Report of Trustee. The matter has been properly noticed, with proof of service on file. No objections have been raised. While the defects raised at the last hearing have been cured, the Amended Petition is incomplete. An Amended Petition takes the place of the original; however, most information in the original Petition, including an accounting for a portion of the accounting period of July 18, 2023-May 12, 2024, is missing. The Court will consider the original and amended Petitions together to contain the entire Thirteenth and Final Account and Report. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order has been lodged and will be executed by the Court. The Trustee is to distribute all remaining assets pursuant to the terms of the Trust. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts. **No appearance is necessary on today's calendar.**

IN RE: THE MACE MILSAP TRUST

Case Number: CVPB13-0027474

This matter is on calendar for an appearance by Trustee Jeanette Yount. At the last hearing July 28, 2025, the Court ordered Ms. Yount to appear today. Additionally, the Court has been informed that Ms. Yount has failed to comply with obtaining a bond in the sum of \$100,000 and placing \$2,000,000.00 into a blocked account. The Court notes that Ms. Yount and Attorney West were not present at the last hearing, and there is no indication that notice of today's proceedings has been provided to them. An appearance is necessary on today's calendar. Ms. Yount is **ORDERED** to appear at today's hearing. The Court intends to set this matter for a contested hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear.